

C482/1639/2021 on 10 December, 2021

Author: Alok Kumar Verma

Bench: Alok Kumar Verma

IN THE HIGH COURT OF UTTARAKHAND
AT NAINITAL

THE HON'BLE SRI JUSTICE ALOK KUMAR VERMA

10th DECEMBER, 2021

CRIMINAL MISCELLANEOUS APPLICATION NO. 1639 of 2021
(under Section 482 of the Code of Criminal Procedure)
WITH
(IA No.01 of 2021) COMPOUNDING APPLICATION

Between:

Sagar Dhiman and Another ...Applicants

and

State of Uttarakhand and Another ...Respondents

Counsel for the Applicants : Mr. Shivanand Bhatt,
learned counsel holding
brief of Mr. Vishwa
Prakash Bahuguna.

Counsel for the Respondent : Mr. Lalit Miglani, learned
No.1 AGA for the State

Counsel for the Respondent : Mr. Niranjan Bhatt.
No.2

Hon'ble Alok Kumar Verma,J.

The applicants - accused persons have invoked the inherent jurisdiction of this Court under Section 482 of the Code of Criminal Procedure, 1973, to quash the impugned charge-sheet dated 30.05.2019, filed in FIR No.316 of 2018, registered with Police Station Raipur, District Dehradun, cognizance and summoning order dated 15.07.2019, passed by the learned Ist Additional Chief Judicial Magistrate, Dehradun in Criminal Case No.3720 of 2019, "State vs. Sagar Dhiman and Another", along with the entire proceedings, pending in the court of the Ist Additional Chief Judicial

Magistrate, Dehradun.

2. Subsequent to the submissions of the charge- sheet, the learned Magistrate took cognizance by the impugned cognizance order and summoning order is passed against the applicants - accused persons for the offence under Sections 498A, 504 of IPC and Section 3/4 of the Dowry Prohibition Act, 1961.

3. Smt. Himani Dhimani, the respondent no.2/ the informant/victim is present in-person. The applicant - accused Sagar Dhiman is present in-person.

4. Heard Mr. Shivanand Bhatt, the learned counsel holding brief of Mr. Vishwa Prakash Bahuguna, the learned counsel appearing for the applicants, Mr. Lalit Miglani, the learned AGA appearing for the State/respondent no.1 and Mr. Niranjana Bhatt, the learned counsel appearing for the respondent no.2.

5. The respondent no.2 (the wife of the applicant no.1) and the applicant no.1 had submitted that they have settled their private disputes and they decided to live separately. According to the parties, a petition under Section 13 B of the Hindu Marriage Act, 1955, has been filed before the competent court. The applicant - Sagar Dhiman and the respondent no.2 Smt. Himani Dhiman have submitted that they have filed a joint Compounding Application (IA No.01 of 2021) with their affidavits. They further submitted that they have filed the said compounding application along with their affidavits with their free will and without any pressure. The applicant no.1, Sagar Dhiman and the respondent no.2, Himani Dhiman, are identified by their respective counsels. Smt. Himani Dhiman submitted that after resolving her disputes with the applicants, she does not want to proceed with the present case.

6. Keeping in view of the totality of the facts and circumstances of the case, this Court is of the view that ends of justice would met, if the impugned FIR, charge-sheet, cognizance, summoning order and entire proceedings of the Criminal Case No.3720 of 2019 are quashed.

7. Resultantly, the First Information Report No.316 of 2018, registered with the Police Station Ranipur, District Dehradun, the impugned charge-sheet dated 30.05.2019, cognizance and summoning order dated 15.07.2019 and the entire proceedings of the Criminal Case No.3720 of 2019, "State vs. Sagar Dhiman and Another", under Section 498A, 504 of IPC and Section 3/4 of the Dowry Prohibition Act, 1961, are quashed.

8. The Criminal Miscellaneous Application No.1639 of 2021, filed under Section 482 of the Code of Criminal Procedure, is disposed of accordingly.

_____ ALOK KUMAR VERMA, J.

Dt: 10th December, 2021 PANT/